

UNITED STATES DISTRICT COURT  
DISTRICT OF MAINE

|            |   |                                                       |
|------------|---|-------------------------------------------------------|
| Plaintiff, | ) |                                                       |
| v.         | ) | Docket No. _____                                      |
| Defendant. | ) | RESPONSE TO COMPLAINT<br>AND<br>REQUEST FOR MEDIATION |

**IMPORTANT NOTICE TO HOMEOWNER**

A foreclosure case has been filed against you in federal court. **You will probably lose your home if you do not file a written Response within 21 days.** You can use this form as your Response. Just fill out this form and return it to the court in the enclosed envelope so that the court receives it **before the 21-day deadline.** Mail a copy to the lender's lawyer. You can attach additional sheets if this form does not give you enough space.

**1. Your Response**

**To protect your rights in this case, you must file a response.** You can file a response by checking the box below. Fill in your address, if it is not already stated.

☐ I live at and own the building at \_\_\_\_\_.  
I believe there are good reasons I should not lose my home to foreclosure. I deny at least some of the lender's statements in the foreclosure complaint. I assert all affirmative defenses that apply to my case.

**2. Your Right to Mediation**

**You have the right to meet with your lender and a neutral third party.** This free meeting gives you the chance to talk about how you might avoid foreclosure – before a judge hears your case. This is called a “mediation” meeting. At the meeting a neutral court mediator will help you and the lender try to come to an agreement. The mediator will not force you to accept an agreement.

When you return this form to the court, the court clerk will schedule you for a mediation meeting.

|                                                      |                                                                       |
|------------------------------------------------------|-----------------------------------------------------------------------|
| Your Signature                                       | Date: _____                                                           |
| Your Name Printed                                    | Address: _____                                                        |
| Email Address ( <i>for official court use only</i> ) | Street Address, City, State, Zip Code<br>_____<br>Phone Number: _____ |